Bikash Vishwakarma

Sole Arbitrator
Office: Chamber no. 450, Patiala House Courts, New Delhi - 110001
Email ID - vishwakarmabikash64@gmail.com

IN THE MATTER OF ARBITRATION AND CONCILIATION ACT, 1996
Arbitration Case No. PSAFL/Arb/Del/3/2025/D078424

CLAIM ARISING IN RESPECT OF LOAN NUMBERS **P410PSA4817471** belongs to Customer ID **230895137**

BETWEEN

Bajaj Finance Limited
Add : 5th Floor, Bajaj Finserv Corporate Office,
Off Pune-Ahmed nagar Road, Viman Nagar, Pune - 411014 ...Claimant

VERSUS

KUNAL DAS
46A 1 LAKE EAST, 6TH ROAD FLAT NO, 4 SANTOSHPUR
SANTOSHPUR, KOLKATA, WEST BENGAL - 700075 -Defendant

Respected Sir/Madam,

Whereas you are hereby informed that, on 31 March, 2025, the Claimant herein has appointed the undersigned as Sole Arbitrator in captioned arbitration case to arbitrate and settle the dispute that has arisen between the parties above named, in accordance with the terms of the said Agreement executed between the parties and as per the rules and provisions of Arbitration and Conciliation Act, 1996 (amended from time to time).

As per the contention of the Claimant the notice dated **20 March, 2025** was sent to you by SMS on your mobile number on 20 March, 2025

Further, as per the information provided by the Claimant that, the mobile No. registered with the Claimant at the time of availing the financial facility by you stands in your name as provided by yourself whereby, you agreed to receive all communications in connection to your loan on the said mobile number. Therefore, being satisfied that, the Pre-Arbitration Notice has been properly served/delivered to you and thereafter no Response from you, I do hereby accept such appointment and enter upon the reference. Accordingly, this Invocation Notice is being addressed along with the attached disclosure on your above mentioned mobile number.

The undersigned declare that as contemplated under the Section 12 of the Arbitration and Conciliation, 1996 there are no circumstances howsoever, which would raise justifiable doubt on undersigned's independence or impartiality. The declaration as required under the said Act is attached and annexed to this letter as **"Annexure A"**

To save time of travelling and use of technology that has developed the arbitration will be online. Even the Hon. Supreme Court has stated from time to time highlighting the importance of a hybrid system in I.S.Inbadurai Versus Appavu CA 1055/2022. Therefore, the parties or their authorized representatives/advocates are at liberty to file the claim statement, pleadings via electronic mode directly to the vishwakarmabikash64@gmail.com

within seven (7) days from the date of notice The Parties or their Authorized Representatives/Advocates are requested to appear and conduct the case in this Arbitration proceeding through video conferencing. Upon receipt of your confirmation on email, the video conference link and/or the login details will be shared.

The undersigned shall conduct the arbitral proceedings in English. Please note that undersigned is holding the first Arbitration meeting on **07 April, 2025** at Chamber no. 450, Patiala House Courts, New Delhi – 110001, or in case if you are willing to appear through video conference, please revert to the mail ID mentioned above on or before 03 April, 2025 along with your loan number and this notice reference number shall be mandatory to be mentioned. We will share the link/ ID & password for meeting. Calling on mobile and disturbing at any hours is not permitted.

Please note that in default of attending virtual hearing either in person or through their authorized representative's, the undersigned shall proceed further without considering their pleadings.

Given under my hand and seal on Date **31 March, 2025**

Annexure - A

THE SIXTH SCHEDULE
DISCLOSURE UNDER SECTION 12(1)(b)OF THE ARBITRATION & CONCILIATION (Amendment) Act 2015

1	Name	Bikash Vishwakarma
2	Email ID	vishwakarmabikash64@gmail.com
3	Address for correspondence	Chamber no. 450, Patiala House Courts, New Delhi - 110001.
4	Prior Experience	11Years
5	Number of Contested Arbitrations	2
6	Circumstances disclosing any past or present relationship with or interest in dispute, whether Financial, Business, Professional or other kind, which is likely to give rise to justifiable doubt as to my independence or impartiality.	No such circumstances Nor employee or Lawyer for Bajaj Finance Limited.
7	Circumstances which are likely to affect my ability to devote sufficient time to the Arbitration and in particulars my ability to finish the entire Arbitration within Twelve Months	I would be able to finish the Arbitration within the statutory period subject to parties abiding by the time schedule fixed, not asking for adjournments and co-operating with completing the arbitration.

Date: **31 March, 2025**